

Vishal Kumar Pandey vs State Of Bihar & Anr on 23 August, 2010

IN THE HIGH COURT OF JUDICATURE AT PATNA

Cr.Misc. No.25849 of 2010

Vishal Kumar Pandey, son of Vishwanath Pandey, resident
of Mohalla- Buxar, P.S. Buxar (Town), District-Buxar.

.....Petitioner.

Versus

1. The State of Bihar.
2. Mamta Devi, D/o Santosh Kumar Tiwary, resident of
Saurav Press Khalashi Mohalla, P.S. Buxar (Town) District-
Buxar.Opposite Parties.

2. 23. 08. 2010

. Heard learned counsel for the petitioner and the Additional P.P. for the State.

The petitioner is named accused in connection with Complaint Case No. 524 (C) /2009 for offences under Section 498A of the Indian Penal Code and Section 3/4 of Dowry Prohibition Act, being husband of the complainant against whom petitioner appears to have filed a Matrimonial Case No. 51/2009 before the Principal Judge, Family Court, Ara under Section 9 of the Hindu Marriage Act, wherein the complainant appears to have refused for reconciliation and to join his company, but process of reconciliation is going on. The couple has two minor children and both children are residing with the complainant who is also studied there.

Learned counsel for the petitioner is submitted that the petitioner is ready and willing to resume marital life with the complainant and in support of his submission he is ready to pay Rs.1,000/- over ad-interim maintenance to the complainant. The petitioner is undisputedly a property dealer and has a printing press, though, it is submitted that business is not profitable.

Considering the facts and circumstances of the case, subject to payment of Rs. 2,000/- per month by way of ad-interim maintenance and further deposit of Rs. 5,000/- as security money to the lower court, subject to order of the competent court on this point, in the event of his arrest/surrender before the court below within four weeks of receipt of the copy of this order, the above named petitioner is directed to be released on bail on furnishing bail bond of Rs. 10,000/- (Ten thousand) with two sureties of the like amount each to the satisfaction of the S.D.J.M., Buxar, in connection with Complaint Case No. 524 (C)/2009, subject to the condition laid down under Section 438 (2) of the Code of Criminal Procedure with additional conditions to attend the court during trial on each and every date at least for two years or till conclusion of the trial whichever is earlier, in case of failure on two consecutive dates, and default of any single payment the liberty shall be deemed to be cancelled.

m.p.

(Akhilesh Chandra, J.)